

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STANLEY SPRINGER JR, JEFFREY INGRAM AND
YARDARNI ELLIS

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICERS
JAMES HAMILTON SHIELD #12176,
JOSEPH LEON SHIELD #9944, JAMES MEEKER
SHIELD #1050, JANE DOE AND JOHN DOE #1-6
(FICTITIOUS NAMES BECAUSE THE OFFICERS'
IDENTITIES ARE PRESENTLY UNKNOWN)
ALL OFFICERS ARE SUED INDIVIDUALLY AND IN
THE CAPACITIES AS POLICE OFFICERS, ALL OFFICERS
ARE BELIEVED TO BE FROM THE 73rd PCT.

Defendants,

-----X
To the above named Defendant(s):

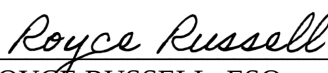
SUMMONS

INDEX NO.

Plaintiffs designate Kings
County as the Place of trial
The basis of venue is Kings
County is the place where the
sued cause of action arose.

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 13, 2020



ROYCE RUSSELL, ESQ.
EMDIN & RUSSELL, LLP.
Attorneys for the Plaintiffs
C/o Jeffrey L. Emdin, Esq.
330 West 38th Street Suite 302
New York, New York 10018
(718) 785-8890

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer James Hamilton
Shield #12176
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

Police Officer Joseph Leon
Shield #9944
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

Police Officer James Meeker
Shield #1050
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

Police Officers Jane Doe
Fictitious names
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

Police Officers John Doe #1-6
Fictitious names
c/o 73rd Pct.
1470 East New York Avenue
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STANLEY SPRINGER JR, JEFFREY INGRAM AND
YARDARNI ELLIS

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICERS
JAMES HAMILTON SHIELD #12176,
JOSEPH LEON SHIELD #9944, JAMES MEEKER
SHIELD #1050, JANE DOE AND JOHN DOE #1-6
(FICTITIOUS NAMES BECAUSE THE OFFICERS'
IDENTITIES ARE PRESENTLY UNKNOWN)
ALL OFFICERS ARE SUED INDIVIDUALLY AND IN
THE CAPACITIES AS POLICE OFFICERS, ALL OFFICERS
ARE BELIEVED TO BE FROM THE 73rd PCT.

Defendants,

-----X

Plaintiffs, Stanley Springer Jr., Jeffrey Ingram and Yardarni Ellis by their attorneys,

EMDIN & RUSSELL, LLP, as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned the defendant, the City of New York, hereinafter certified to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, and the New

York City Department of Corrections hereinafter respectively referred to as “NYPD” , including all the Police Officers therein.

3. Upon information and belief Police Officer James Hamilton, hereinafter referred to as “Hamilton” at all times hereinafter mentioned, and on the 2nd day of September, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 73rd pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
4. Upon information and belief Police Officer Joseph Leon, hereinafter referred to as “Leon” at all times hereinafter mentioned, and on the 2nd day of September, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 73rd pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
5. Upon information and belief Police Officer James Meeker, hereinafter referred to as “Luciani” at all times hereinafter mentioned, and on the 2nd day of September, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 73rd pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
6. Upon information and belief Police Officer Jane Doe, hereinafter referred to as “Jane” at all times hereinafter mentioned, and on the 2nd day of September, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 79th pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

7. Upon information and belief John Doe #1-6, hereinafter referred to as ‘Does’ named herein in a fictitious capacity as their identities are presently unknown all times hereinafter mentioned, and on the 2nd day of September, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, was assigned to the 73rd pct. and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
8. Upon information and belief other unknown Police Officers named herein in fictitious capacities as their names are currently unknown, all times hereinafter mentioned, and on the 2nd day of September, 2019 was/were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 73rd pct. and acted in the capacity as Police Officers and employee of the City of New York, and/or New York City Police Department.
9. Hereinafter the police officers present at the location set forth below are collectively referred to as “the officers”.
10. The incident set forth below occurred at the location of East 98th Street and Lavonia Avenue, and/or near the intersection of Howard and Lavonia Avenue, Brooklyn, New York, hereinafter referred to as “the location”, on September 2, 2019 at approximately 2:00-3:00 a.m.
11. At all relevant times hereinafter mentioned, plaintiff Stanley Springer Jr., hereinafter referred to as “Stanley”, and was a resident of Kings County, residing at 837 Howard Avenue, Brooklyn, New York 11212.

12. At all relevant times hereinafter mentioned, plaintiff Jeffrey Ingram hereafter referred to as “Jeffrey” and was resident of Kings County, residing at 293 Wyona Street, Brooklyn New York 11207.
13. At all relevant times hereinafter mentioned, plaintiff, Yardarni Ellis, hereinafter referred to as “Yardarni”, and was a resident of Kings County, residing at 525 Rockaway Parkway, Brooklyn, New York 11212.
14. Stanley, Jeffrey and Yardarni shall hereinafter collectively be referred to as the “Plaintiffs”.
15. The “Plaintiffs” have each individually filed Notices of Claim advising of the nature of their claims. The plaintiffs have each submitted to a 50 h hearing.
16. The defendants have not offered to settle the plaintiffs’ claims.
17. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

18. On September 2, 2019 at approximately 2:00-3:00 a.m. the “plaintiffs” were at the “location” of East 98th Street and Lavonia Avenue and/or near the intersection of Howard and Lavonia Avenue, walking towards Plaintiff Stanley’s home. As the plaintiffs approached the intersection of Howard and Lavonia they observed a crowd of approximately 50 police officers.
19. Upon observing these Police Officers one of the Defendant-Officer approached Stanley and said “Get back, get the fuck back”. Stanley explained that he lived at the location near the crowd of police officers. Defendant-Officer then pushed Stanley, with two hands

in his chest. Stanley turned around and stated “He was going” and as Stanley turned his back whereupon he was again pushed twice more. At that point Stanley again stated “Alright I am going” whereupon he was pushed out of his shoes to the ground.

20. Stanley while on the concrete ground was then kicked in the head and about the body. As a result of the Defendants-Officers’ actions Stanley suffered a laceration to his elbow and bruising to his body.

21. Stanley was eventually allowed to stand whereupon he was pushed and told to “Get the fuck out of here”. After being battered and assaulted Stanley was left bare footed and not allowed to retrieve his shoes for 3 hours as he sat/stood down the block for 3 hours, shoeless.

22. During this time Jeffrey alerted the Defendants-Officers that he was going to and/or was recording the Defendants-Officers’ misconduct. As Jeffrey was proceeding to video the Defendants-Officers turned their focus on him and falsely detained, battered and assaulted Jeffrey.

23. Jeffrey was punched in the head multiple times and intentionally tripped to the concrete whereupon his cell phone was slapped out of his hand and confiscated as he was punched in the face again.

24. Jeffrey was enclosed in a circle, by the Defendants-Officers, as he laid on the ground and the Defendants-Officers yelled “Stop running”. Jeffrey was brought to his feet and then slammed onto a gate, struck in the eye, head and pushed again into a gate.

25. Jeffrey was released and told to walk; Jeffrey complied as he then observed the battery and assault of Plaintiff Yardarni.

26. As a result of Defendants-Officers misconduct, Jeffrey suffered a swollen face, repeated headaches, loss of appetite and sensitivity to light. Jeffrey has visited the hospital numerous times as a result of being battered and assaulted.
27. During the battery and assault of Plaintiffs Stanley and Jeffrey, Plaintiff Yardarni was pleading the Defendants-Officers to stop. Yardarni shouted “Hey stop” and after making this statement the Defendants-Officers detained, battered, assaulted and falsely arrested Yardarni.
28. The Defendants-Officers then struck Yardarni in the face and body as he was thrown to the concrete ground.
29. Yardarni faced was pinned to the ground with the weight of the Defendant –Officer who detained him applied to his head until he felt like he was suffocating.
30. Yardarni was repeatedly punched and kicked about his body and lower back. Yardarni.
31. The Defendants-Officers also tased Yardarni twice.
32. Yardarni was then dragged to a police car falsely arrested and detained for at least 24 hours. During his detention his medical needs were ignored as he complained about being kicked in the head and tased. Eventually he was transported to a hospital whereupon a CAT/SCAN was ordered because he was bleeding from the head.
33. Yardarni was eventually released back into the Defendants-Officers’ custody and he was arraigned and release on his own recognizance. Yardarni was photographed, illegally searched, finger printed and falsely charged with Tampering with Evidence, Resisting Arrest as well as Disorderly Conduct.
34. All criminal charges were dismissed after several court appearances.

35. As a result of the Defendants-Officers misconduct Yardarni suffers from headaches
soreness to his lower back area and emotional trauma.
36. Stanley, Jeffrey and Yardarni did not commit any crime nor contribute to the misconduct
and excessive force by the Defendants-Officers.
37. Stanley, Jeffrey and Yardarni assert that Defendants-Officers Hamilton, Meeker, Leon,
Jane and John Doe #1-6 were all responsible and involved in the violations of their rights
including but not limited to battery, assault, false detention, false imprisonment, false
arrest, illegal search and seizure, use of excessive force, malicious prosecution and civil
right violations.
38. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation
of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the
exemptions provided in CPLR 1602.

**AS AND FOR A FIRST THROUGH THIRD CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE IMPRISONMENT/DETENTION/ARREST ON
BEHALF OF THE PLAINTIFFS EACH WITH A CAUSE OF ACTION
RESPECTIVELY ALLEGES:**

39. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in
paragraphs marked "1" through "38" with the same force and effect as if more fully and
at length set forth herein.
40. That on the 2nd day of September 2019, at or between the approximate hours of 2:00-3:00
a.m., the defendants, and their agents, servants and/or employees intentionally held,
detained, imprisoned and/or arrested the plaintiffs without any just cause or grounds
therefore.
41. Each of said plaintiffs were held against their will under full force of arms.

42. Each plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to their false detention, imprisonment and/or arrest by the defendants, their agents, servants and/or employees and was forced to submit to having their freedom restricted and said imprisonment entirely against their will.
43. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine each of the plaintiffs' movement and freedom; each of the plaintiffs was conscious of their confinement; each of the plaintiffs did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.
44. That by reason of the aforesaid false imprisonment and/or arrest of each of the plaintiffs was subjected to great indignity, humiliation, pain and great distress of mind and body, and said plaintiffs have been otherwise damaged.
45. That by reason of the aforesaid, the Plaintiff, Stanley, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
46. That by reason of the aforesaid, the plaintiff, Jeffrey, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
47. That by reason of the aforesaid, the plaintiff, Yardarni, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH THOUGH THE SIXTH CAUSES OF ACTION ON BEHALF
OF ALL PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR BATTERY AND
ASSAULT EACH PLAINTIFF ALLEGES:**

48. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "47" with the same force and effect as if more fully and at length set forth herein.

49. That commencing on the 2nd day of September, 2019 at the approximate hours of 2:00-3:00 a.m. at the “the location”, the defendant officers and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the defendant the “CITY” and “NYPD”, without just cause or provocation falsely detained, imprisoned, arrested, battered, assaulted, and violated each plaintiffs’ civil rights.
50. Upon information and belief the officers had absolutely no reason or just cause to falsely detained, imprisoned, arrested, battered, assaulted, and violated each plaintiffs’ civil rights.
51. The battery and assault and physical contact was not privileged.
52. The battery and assault took place while the plaintiffs had committed no crime.
53. That the defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the defendant “CITY” and/or “NYPD”, within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered each of the named plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to “the plaintiffs”.
54. That said acts caused apprehension of such offensive contact to each of “the plaintiffs”, and the defendants caused such battery and assault in and about his body and limbs.
55. That by reason of the aforesaid intentional battery and assault, each plaintiff suffered offensive contact and/or psychological injuries to his body mind, and that each was otherwise damaged.

56. That by reason of the aforesaid, the plaintiff, Stanley, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

57. That by reason of the aforesaid, the plaintiff, Jeffrey, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

58. That by reason of the aforesaid, the plaintiff, Yardarni, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A SEVENTH THROUGH NINETH CAUSES OF ACTION AGAINST
ALL NAMED DEFENDANTS, POLICE OFFICERS AS OFFICERS AND
INDIVIDUALLY FOR EXCESSIVE FORCE-42 U.S.C. 1983 VIOLATIONS EACH
OF THE PLAINTIFFS ALLEGE:**

59. "The plaintiffs" repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "58" with the same force and effect as if more fully and at length set forth herein.

60. By the aforesaid acts, the defendants "officers" individually and collectively have violated each plaintiffs' right: to privacy under the First and Fourteenth Amendments, to have their homes and persons be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race and excessive force thereby giving rise to a cause of action pursuant to 42 USC 1983.

61. The conduct and actions of the named defendants police officers, acting under color of law, in seizing each plaintiff; battering and/or assaulting each plaintiff; threatening the plaintiffs; falsely imprisoning, falsely arresting, and upon information and belief in searching each plaintiff; and using police equipment inappropriately were all done intentionally, maliciously and/or with a reckless disregard for the natural and probable

consequences of their acts and done without lawful justification designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq., Each Defendant-Officer used excessive and unwarranted force.

62. Each of the Defendants'-Officers' individually and collectively deprived each Plaintiff of his rights including, but not limited to the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. 1983 et seq.

63. That by reason of the aforesaid, Stanley, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

64. That by reason of the aforesaid, Jeffrey, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

65. That by reason of the aforesaid, Yardarni, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TENTH THROUGH TWELVETH
CAUSES OF ACTION FOR NEGLIGENCE AGAINST THE "CITY"
EACH OF THE PLAINTIFFS ALLEGE

66. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "65" with the same force and effect as if more fully and at length set forth herein.
67. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the defendants named herein.
68. That as a result of their negligence, the above named plaintiffs were falsely imprisoned, falsely arrested, illegally seized, illegally searched, battering, assaulting and had their constitutional and civil rights violated.
69. That by reason of the aforesaid, the plaintiff, Stanley, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
70. That by reason of the aforesaid, the plaintiff, Jeffrey, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
71. That by reason of the aforesaid, the plaintiff, Yardarni, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRTEENTH THROUGH FIFTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 and 1988, BY “JANE AND JOHN DOES #1-6” FOR
FAILING TO INTERVENE AND MITIGATE AND FOR VIOLATING PLAINTIFF’S
RIGHT TO EQUAL PROTECTION UNDER THE LAW

72. That plaintiffs repeats, reiterates and realigns each and every allegation contained in paragraphs marked "1" through "71" with the same force and effect as if more fully and at length set forth herein.
73. That at all times hereinafter mentioned, and on September 2, 2019, defendants “Jane and John Does #1-#6” were employed by the defendant The City of New York, and/or The New York City Police Department, and was acting under the color of his/their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.
74. That at all times, “Jane and John Does #1-#6” were acting pursuant to orders, directives, training, supervision and guidelines from defendant, The City of New York.
75. That during all times hereinbefore and hereinafter mentioned, “Jane and John Does #1-#6” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that he acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
76. That on the date, time and location the plaintiffs were lawfully walking and exercising their First Amendment rights when confronted by the Defendants-Officers

77. That the plaintiffs were not interfering with their official functions.
78. That the named Defendants-Officers were acting in concert with each other and used excessive/unwarranted physical force against the plaintiffs in that the plaintiffs were battered and assaulted and had their 4th Amendment Rights violated.
79. That upon information and belief “Jane and John Does #1-#6, were present during said conduct, observed said conduct, had the ability to stop and/or mitigate said conduct and elected not to do so, causing injury to the plaintiffs.
80. That upon information and belief the defendants “Jane and John Doe #1-#6” failed to report said misconduct of their fellow officer, and/or failed to provide the plaintiff with equal protection under the law.
81. That as a direct proximate result of the defendants’ actions the plaintiffs, were subjected physical injury, and subsequent arrest and confiscation of property.
82. That by reason of the aforesaid, the plaintiffs, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys’ fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each named defendant, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTEENTH THROUGH EIGHTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, 1988, BY “THE OFFICERS”, IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK

83. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "82" with the same force and effect as if more fully and at length set forth herein.

84. That at all times hereinafter mentioned, the defendant “officers” were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

85. That at all time, the defendant officers were acting pursuant to orders and directives from defendant, “City”.

86. That during all times hereinafter mentioned, “the officers” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the “City” and/or New York City Police Department and that “the officers” were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiffs, and deprived them of their rights, privileges and immunities secured to her by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

87. That the unlawful and illegal conduct of the defendants deprived Plaintiffs of their following rights, privileges and immunities secured to them by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiffs to be secure in their person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

- b) The right of Plaintiffs not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
- c) The right not to be subjected to cruel and unusual punishment, and
- d) The right to freedom of speech;
- e) The right to Due Process of Law

88. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of Plaintiffs' person, destruction of evidence, falsification of evidence and/or reports, false arrest and false imprisonment, assault and battery, malicious prosecution, engaging in a cover-up, and threatening the plaintiff, the defendant, the defendant "officers" violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto. The City defendant officers, and the City under the doctrine of respondent superior, violated 42 U.S.C. §1983.

89. That as a direct proximate result of the defendants actions the Plaintiffs, was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

90. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, by the actions of "the officers", individually and collectively.

91. That by reason of the aforesaid, the Plaintiffs, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive

damages, costs, attorneys' fees, expert fees, as set forth and provided by 42 U.S.C.

Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION AGAINST THE "CITY"
ON BEHALF OF YARDARNI ELLIS-PLAINTIFF ALLEGES:**

92. Plaintiff-Yardarni repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "78" with the same force and effect as if more fully and at length set forth herein.

93. The defendants filled out false police reports, and issued a Misdemeanor Accusatory instrument against the plaintiff for the purpose of prosecuting him for the charge that he knew that they did not commit.

94. The defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff and the injuries that they sustained at the hands of the police.

95. The plaintiff was at all times innocent of any crime charged.

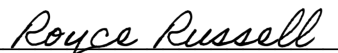
96. That due to the malicious prosecution the plaintiff was caused to be in conveyance and Brandon to take time from his employment to defend himself as well as forego an employment opportunity.

97. That by reason of the aforesaid malicious prosecution, the plaintiff-Brandon has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the thirteenth causes of action, plus attorneys fees, costs, disbursements and punitive damages, and such further relief as to the

court seems just and proper.

DATED: New York, New York
May 13, 2020



Royce Russell, Esq.
Emdin & Russell, LLP.
Attorneys for Plaintiffs
C/o Law Office of Jeffrey L. Emdin, Esq.
330 West 38th Street Suite 302
New York, New York 10018
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

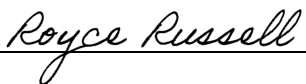
That I am an attorney associated with the law firm of Emdin, & Russell, LLP., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 13, 2020

A handwritten signature in cursive script, reading "Royce Russell", is written over a horizontal line.

By: Royce Russell, Esq.